

HOUSE No. 1782

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the protection of children.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/14/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/14/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>

HOUSE No. 1782

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1782) of Bradley H. Jones, Jr., and others relative to the protection of children. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1581 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the protection of children.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 265 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after Section 13N the following section:-

3 Section 13O. Failure to Notify Law Enforcement of Missing or Deceased Child

4 For the purposes of this section, the following words shall have the following meanings:-

5 “Person having care and custody”, a parent, guardian, employee of a home or institution
6 or any other person with equivalent supervision or care of a child, whether the supervision is
7 temporary or permanent.

8 “Child”, any person under 14 years of age.

9 "Law enforcement authority", any police department in the commonwealth or any of its
10 political subdivisions.

11 "Missing child or children", any person under the age of 14 years missing from his
12 normal and ordinary place of residence or last known whereabouts and whose whereabouts
13 cannot be determined by the person having care and custody of such child.

14 Whoever, having care and custody of a child, fails to notify a law enforcement authority
15 or emergency medical personnel of the death of such child, accidental or otherwise, within 2
16 hours of the discovery of such known death and (i) intends to mislead a public official, (ii)
17 intends to impede any investigation, or (iii) causes an investigation to be impeded, shall be
18 punished by a term of imprisonment in the state prison for not more than 10 years or
19 imprisonment in the house of correction for not more than 2 ½ years.

20 Whoever, having care and custody of a child, finds the child missing and fails to notify a
21 law enforcement authority of the missing child within 5 days and (i) intends to mislead a public
22 official, (ii) intends to impede an investigation, or (iii) causes an investigation to be impeded,
23 shall be punished by a term of imprisonment in the state prison for not more than 10 years or
24 imprisonment in the house of correction for not more than 2 ½ years.

25 SECTION 2. Section 13J of chapter 265 of the General Laws, as appearing in the 2022
26 Official Edition, is hereby amended by striking out, in lines 32 and 33, the words

27 "two and one-half years in the house of correction" and inserting in place thereof the
28 following words:- "10 years in the state prison"

29 ; and is hereby further amended by striking out, in line 39, the words “five years” and
30 inserting in place thereof the following:- “15 years”

31 ; and is hereby further amended by striking out, in lines 39 and 40, the words “in a jail or
32 house of correction for not more than two and one-half years” and inserting in the place thereof
33 the following:- “for 10 years in the state prison.”